

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E

**DEFENDANT’S SUPPLEMENTAL MEMORANDUM IN SUPPORT OF
RULE 1.540(B)(4) & (B)(3) MOTION TO VACATE COUNT 8
(DECLARATORY OWNERSHIP IN FAVOR OF “TOKE OIL AND GAS
S.A.”)**

Defendant, pro se, files this Supplemental Memorandum in support of his pending Rule 1.540(b)(4) (voidness) and Rule 1.540(b)(3) (misrepresentation/other misconduct) motion directed to Count 8, which declares “Toke Oil and Gas S.A.” to be the owner of assets at issue. This supplement adds pinpoint record citations demonstrating that “Toke”’s existence, citizenship, and authority were never established by competent evidence.

I. Key, undisputed record markers

1. Removal ¶6 (June 25, 2018): fictitious/non-existent “Toke Oil and

Gas, Inc.”

Defendant’s Notice of Removal (¶6) to U.S. District Court asserted that the complaint named “Toke Oil and Gas, Inc.” [sic], which did not exist (no record at the Florida Department of State) and was fraudulently joined, and that “as a fictitious entity, the citizenship of this plaintiff, if any, should be disregarded” under 28 U.S.C. §§ 1332, 1441(b). Plaintiffs filed no motion to remand and made no timely response to ¶6.

2. Late “scrivener’s error” motion (Sept. 18, 2018) — label change without proof.

Three months later, Plaintiffs filed a “Motion to Correct Scrivener’s Error in the Case Style Regarding Plaintiff,” stating: “Plaintiff inadvertently referred to itself as Toke Oil and Gas, Inc. in the Initial Pleadings.... Plaintiff’s actual legal name is Toke Oil and Gas, S.A.” [sic]. The motion attached no certified registry extract, no certificate of status/good standing, no governing-law identification, no incumbency/authority certificate, and no chain-of-title for any claimed right.

2A. Plaintiffs filed the label-only motion only after repeated defense requests for corporate proof.

From June 25, 2018 through September 18, 2018, Defendant filed multiple written requests on the record for “Toke” corporate documentation (registry/certificate, governing law, incumbency/authority, chain-of-title). Plaintiffs provided none before filing the “scrivener’s error” motion—and that motion still attached no corporate proofs.

3. Punctuation discrepancy evidences absence of corporate records.

The founding instruments from Timor-Leste identify the entity as “Toke Oil and Gas S.A.” (no comma). Plaintiffs’ motion used “Toke Oil and Gas, S.A.” [sic]. The internal inconsistency, combined with the absence of corporate proofs, confirms counsel did not possess the entity’s corporate documents when asking the courts to accept “Toke” at face value.

3A. Aug. 22, 2018 Answer: party existence, capacity, and corporate authority were placed at issue.

Defendant’s Aug. 22, 2018 Answer alleged (i) non-existence of

“Toke Oil and Gas, Inc.” [sic], (ii) lack of real-party-in-interest and capacity/authority to sue, including absence of any board resolution or corporate approval, (iii) summons showing a private residence as the listed address, and (iv) that any “Toke Oil & Gas S.A.” in Timor-Leste ceased around 2013 and had only two directors (including Defendant), making unilateral authorization implausible. Plaintiffs filed no contemporaneous proof of existence, governing jurisdiction/citizenship, authority/incumbency, or chain of title; the later “scrivener’s error” motion did not cure these defects. These are threshold matters (real party in interest/capacity/authority) and go directly to voidness of Count 8.

3B. Plaintiffs’ filings list a Pensacola, Florida address for “Toke” and no foreign registered address—still no corporate proofs.

Plaintiffs consistently used a Pensacola, Florida, address for “Toke Oil and Gas” (including 431 E. Zaragoza St., Unit B, Pensacola, FL 32502, a private residence), while providing no certified registry extract, no foreign registered/principal office address, no governing-law identification, and no incumbency/authority for any “Toke” entity—despite repeated defense requests since 2018. The

address choice (a Florida private residence) and the absence of corporate proofs confirm that identity, citizenship, and authority for “Toke” were never established. Count 8’s ownership declaration therefore rests on unproven predicates and is void (Rule 1.540(b)(4)), or at minimum warrants relief for misrepresentation/other misconduct (Rule 1.540(b)(3)).

4. Federal ruling in Defendant’s favor; remand three years later on “Toke” citizenship.

The case proceeded in U.S. District Court and was resolved in Defendant’s favor. A few months later, on appellate proceedings, the matter was remanded to State Court on the citizenship of “Toke”—still without any certified registry/certificate, incumbency/authority, or chain-of-title proofs for any “Toke” entity.

II. Legal consequence for Count 8

Count 8’s declaration of ownership presupposes that “Toke Oil and Gas, S.A.” exists, has a definite governing jurisdiction/citizenship, and was authorized to assert rights. On this record, those predicates were never proven. Relief lies under:

- Rule 1.540(b)(4) (voidness): A judgment predicated on a non-existent or unproven party or lacking a real party in interest is void.
- Rule 1.540(b)(3) (misrepresentation/other misconduct): The late label change and persistent absence of corporate proofs, despite repeated notices, warrant relief.

III. Requested relief

Defendant respectfully requests that the Court:

- 1. Vacate Count 8 in full** under Rule 1.540(b)(4) (voidness) and/or Rule 1.540(b)(3) (misrepresentation/other misconduct) because Plaintiffs never proved “Toke” exists, has authority, or transferred ownership by any date, and the “by May 25, 2012” finding lacks competent evidentiary support. Defendant does not concede any ownership date; the point here is that no admitted, authenticated evidence supports the judgment’s ‘by May 25, 2012’ finding.
- 2. Alternatively, rehearing with strict proof conditions** (no roadmap, burden on Plaintiffs): If the Court is not prepared to vacate, limit rehearing to whether Plaintiffs can meet their prima facie burden with properly authenticated corporate evidence. Any late-offered foreign

corporate records must satisfy strict authenticity and reliability safeguards before admission, including:

- **Self-authentication/official certification** consistent with the Florida Evidence Code for foreign public records (e.g., certification by the issuing authority, apostille/consular legalization as applicable).
- **Contemporaneous registry/ledger extracts** reflecting the alleged transfer as of the date claimed, not after-created summaries.
- **Custodian-of-records declarations** or **live testimony** subject to cross-examination.
- **Certified translations** by a qualified translator who is available for cross-examination.
- **Chain-of-title continuity** (no gaps; no “effective as of” recitals without underlying executed instruments).
- **Court-directed verification** (e.g., neutral inquiry to the foreign company registry or production under oath from the registry’s custodian), and disclosure of all metadata/origin information for any digital records.
- **Sanctions/adverse inference** if Plaintiffs fail to comply or if documents appear altered or non-contemporaneous.

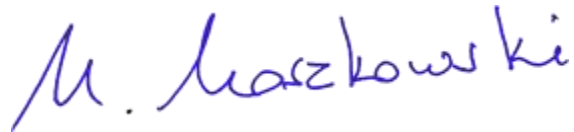
Respectfully submitted this 16th day of September, 2025

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CERTIFICATE OF SERVICE

I hereby certify that, on this 16th day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

